

**SUBSTITUTE FOR
HOUSE BILL NO. 5985**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending sections 2701 and 2705 (MCL 333.2701 and 333.2705),
section 2701 as amended by 2022 PA 38 and section 2705 as amended
by 2022 PA 37.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 2701. As used in this part:

2 (a) "Board certified" means certified to practice in a
3 particular medical specialty by a national board recognized by the
4 American Board of Medical Specialties or the American Osteopathic
5 Association.

6 (b) "Certified nurse midwife" means an individual who is
7 licensed as a registered professional nurse under part 172 who has



1 been granted a specialty certification in the practice of nurse
2 midwifery by the Michigan board of nursing under section 17210.

3 (c) "Certified nurse practitioner" means an individual who is
4 licensed as a registered professional nurse under part 172 who has
5 been granted a specialty certification as a nurse practitioner by
6 the Michigan board of nursing under section 17210.

7 (d) "Clinical nurse specialist-certified" means an individual
8 who is licensed as a registered professional nurse under part 172
9 who has been granted a specialty certification as a clinical nurse
10 specialist by the Michigan board of nursing under section 17210.

11 (e) "Dental school" means an accredited program for the
12 training of individuals to become dentists.

13 (f) "Dentist" means an individual who is licensed to engage in
14 the practice of dentistry under part 166.

15 (g) "Designated advanced practice registered nurse" means a
16 certified nurse midwife, certified nurse practitioner, or clinical
17 nurse specialist-certified.

18 (h) "Designated mental health professional" means an
19 individual who is qualified in the area of mental illness or
20 developmental disabilities and who is 1 of the following:

21 (i) A nurse.

22 (ii) A psychologist.

23 (iii) A licensed master's social worker.

24 (iv) A licensed professional counselor.

25 (v) A marriage and family therapist.

26 (i) "Designated physician" means a physician qualified in 1 of
27 the physician specialty areas identified in section 2711.

28 (j) "Designated professional" means a designated physician,
29 designated advanced practice registered nurse, dentist, physician's



1 assistant, **pharmacist**, or designated mental health professional.

2 (k) "Health resource shortage area" means a geographic area,
3 population group, or health facility designated by the department
4 under section 2717.

5 (l) "Licensed master's social worker" means an individual who
6 is licensed under part 185 to engage in the practice of social work
7 at the master's level.

8 (m) "Licensed professional counselor" means an individual who
9 is licensed under part 181 to engage in the practice of counseling
10 without supervision.

11 (n) "Marriage and family therapist" means an individual who is
12 licensed under part 169 to engage in the practice of marriage and
13 family therapy.

14 (o) "Medicaid" means benefits under the program of medical
15 assistance established under title XIX of the social security act,
16 42 USC 1396 to ~~1396w-6~~, **1396w-9**, and administered by the department
17 under the social welfare act, 1939 PA 280, MCL 400.1 to 400.119b.

18 (p) "Medical school" means an accredited program for the
19 training of individuals to become physicians.

20 (q) "Medicare" means benefits under the federal Medicare
21 program established under title XVIII of the social security act,
22 42 USC 1395 to ~~1395mm~~, **1395mmm**.

23 (r) "Mental health professional program" means an accredited
24 program for the training of individuals to become a designated
25 mental health professional.

26 (s) "National Health Service Corps" means the agency
27 established under 42 USC 254d.

28 (t) "Nurse" means an individual who is licensed to engage in
29 the practice of nursing under part 172.



1 (u) "Nursing program" means an accredited program for the
2 training of individuals to become nurses.

3 (v) **"Pharmacist" means an individual who is licensed to engage**
4 **in the practice of pharmacy under part 177.**

5 (w) **"Pharmacy school" means an accredited program for the**
6 **training of individuals to become pharmacists.**

7 (x) ~~(v)~~—"Physician" means an individual who is licensed as a
8 physician under part 170 or part 175.

9 (y) ~~(w)~~—"Physician's assistant" means an individual who is
10 licensed as a physician's assistant under part 170 or part 175.

11 (z) ~~(x)~~—"Physician's assistant program" means an accredited
12 program for the training of individuals to become physician's
13 assistants.

14 (aa) ~~(y)~~—"Psychologist" means an individual licensed to engage
15 in the practice of psychology under part 182.

16 (bb) ~~(z)~~—"Service obligation" means the contractual obligation
17 undertaken by an individual under section 2705 or section 2707 to
18 provide health care services for a determinable time period at a
19 site designated by the department.

20 Sec. 2705. (1) The department shall administer an essential
21 health provider repayment program for designated professionals who
22 have incurred a debt or expenses as a result of a loan taken to
23 attend a medical school, **a** dental school, **a** mental health
24 professional program, **a** nursing program for the training of
25 certified nurse midwives, certified nurse practitioners, or
26 clinical nurse specialists-certified, **a pharmacy school**, or **a**
27 physician's assistant program or as a result of providing services
28 in a health resource shortage area. The department may each year
29 repay all or part of a designated professional's debt or expenses,



1 but the amount repaid in any 1 year ~~shall~~**must** not exceed the
 2 amount described in subsection (3). The department shall repay a
 3 debt or expenses only for a designated professional who has entered
 4 into a written contract with the department that requires the
 5 designated professional to engage in the full-time practice of
 6 health care services in a health resource shortage area to which ~~he~~
 7 ~~or she~~**the designated professional** is assigned by the department
 8 for a period equal in years to the number of years for which the
 9 department has agreed in the contract to make a debt or expense
 10 repayment, or for a period of 2 years, whichever is greater.

11 (2) A debt or expense repayment on behalf of a designated
 12 professional under subsection (1) for fulfilling a service
 13 obligation for a particular year must be paid in a lump sum at the
 14 completion of the service obligation for that year. A designated
 15 professional who does not fulfill a service obligation for a
 16 particular year forfeits ~~his or her~~**the designated professional's**
 17 right to the debt or expense repayment or any part of it for that
 18 year and the department may treat an agreement for further debt or
 19 expense repayment in a subsequent year as void. In its sole
 20 discretion, the department may make a debt or expense repayment
 21 before or during each year of service if there are extenuating
 22 circumstances. In its sole discretion, the department may pay a pro
 23 rata amount of an agreed debt or expense repayment to a designated
 24 professional or ~~his or her~~**the designated professional's** estate if
 25 1 of the following occurs before the completion of the designated
 26 professional's service obligation:

27 (a) The designated professional dies.

28 (b) The designated professional is unable, by reason of
 29 permanent disability, to render the service.



1 (c) Other circumstances prevail that are considered by the
2 department to constitute a compelling reason to consider the
3 service obligation fulfilled.

4 (3) In any year of a debt or expense repayment program, the
5 maximum amount of a debt or expense repayment is \$40,000.00 per
6 year. The maximum amount of debt or expense repayment the
7 department may pay on behalf of a designated professional is
8 \$300,000.00, paid over a period of 10 years or more. The written
9 contract described in subsection (1) must include the amount the
10 department shall pay on behalf of a designated professional and the
11 amount payable for each year of service.

12 (4) The department may accept funds from any source for the
13 operation of the essential health provider repayment program, and
14 the department shall distribute those funds in a manner consistent
15 with this section.

16 (5) The department shall give the essential health provider
17 repayment program created by this section priority over the other
18 programs created under this part.

